rights to be conceded will be made altogether inviolable.[1]

According to the White Paper the powers of the Governor in relation to his ministers, to the Provincial Legislature and to the Provincial Administration will be an exact replica of those enjoyed by the Governor-General at the centre. Hence it is not necessary to repeat all those provisions. The only difference will be that in the Provinces there will be no 'reserved departments' managed by 'Counsellors', but corresponding to them there may be 'Excluded Areas' or 'Partially Excluded Areas' the administration of which will be beyond the control of the Legislatures. Most of the provinces will have only one Chamber—but in Bengal, the United Provinces and Bihar there will be two Chambers. The term of the Lower House—the Legislative Assembly—will be five years, and that of the Upper House—Provincial Council—will be seven years. The Provincial Council will be constituted partly by nomination by the Governor and partly by direct election from constituencies for Moslem and for non-Moslem voters. In Bengal and Bihar a certain number will also be elected by the Provincial Assembly by method of the single transferable vote. And in Bengal one member will be elected by qualified European voters. The constitution of the Provincial Legislative Assembly has been explained below.

The Franchise Scheme embodied in the White Paper is based on the Lothian Committee's Report, the Prime Minister's Communal Award and the Poona Pact. Talking generally, the present provincial franchise has been made the franchise for the Lower House of the Federal Legislature. The present ratio of women to male voters will remain unchanged. The existing franchise in all the provinces is essentially based on property. The White Paper proposes to supplement property qualification by an educational qualification common to men and women. There will be a differential franchise in the case of the Depressed Classes in order to enfranchise about 2 per cent of their population. The White Paper proposes to enfranchise as voters for the Federal Legislature between 2 and 3 per cent of the total population of British India, i.e. about 7 or 8 millions.

The franchise for the future provincial assemblies is based on property to men and women alike—and by a qualification for

[1] For instance, it is not clear that imprisonment without trial will be rendered impossible in India as has been done in Great Britain owing to the Habeas Corpus Act.